

Court No. - 3

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer & Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., H.P. Dubey, Ranjit Saxena

Hon'ble Pritinker Diwaker, J.

Hon'ble Saral Srivastava, J.

Sri Shyam Singh Sengar, learned counsel for the petitioner has sent illness-slip.

List this case on 29.11.2018.

Order Date :- 13.11.2018

Ajeet

Court No. - 39

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer & Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., H.P. Dubey, Ranjit Saxena

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

This writ petition is of the 2007.

Mr. Shyam Singh Sengar, states that he is not prepared with the case.

List this case peremptorily in the next cause list showing the name of Shri Baleshwar Chaturvedi, as counsel for the respondents.

Order Date :- 29.11.2018

Rahul.

Court No. - 39

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer & Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., H.P. Dubey, Ranjit Saxena

Hon'ble B. Amit Sthalekar, J.

Hon'ble Piyush Agrawal, J.

Shri Shyam Singh Sengar, learned counsel for the petitioner filed supplementary affidavit after serving the same upon Shri Baleshwar Chaturvedi.

Shri Baleshwar Chaturvedi prays for and is granted two weeks to file his reply to the supplementary affidavit.

List peremptorily on **8.1.2019**.

Order Date :- 6.12.2018

o.k.

Court No. - 32

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer & Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., H.P. Dubey, Ranjit Saxena

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

The case is passed over on the illness slip of Sri Shyam Singh Sengar, learned Counsel for the petitioner.

Order Date :- 8.1.2019

S. Singh

Court No. - 21

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer And Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, H.P. Dubey, Ranjit Saxena

Hon'ble Pradeep Kumar Singh Baghel, J.

Hon'ble Pankaj Bhatia, J.

On 6.12.2018, Sri Baleshwar Chaturvedi, learned counsel for the respondents was allowed two weeks time to file a reply to the supplementary affidavit. No supplementary affidavit is on the record.

Two weeks further time is granted to Sri Baleshwar Chaturvedi to reply the same.

List this case after two weeks.

Order Date :- 28.1.2019

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Court No. - 32

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage
Tirwa

Respondent :- Executive Engineer And Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam
Singh Sengar

Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi, H.P. Dubey, Ranjit Saxena

Hon'ble Shashi Kant Gupta,J.

Hon'ble Pradeep Kumar Srivastava,J.

The case is passed over on the illness slip of Sri Shyam Singh Sengar, learned counsel for the petitioner.

List the matter in the next cause list.

Order Date :- 22.2.2019

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Court No. - 32

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer And Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, H.P. Dubey, Ranjit Saxena

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

Learned counsel for the petitioner states that the petitioner had died last week and has prayed to file substitution application in this regard.

In view of the above, two weeks time is allowed to the learned counsel for the petitioner for filing substitution application.

List thereafter.

Order Date :- 11.3.2019

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Court No. - 32

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer And Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- C.S.C., Baleshwar Chaturvedi, H.P. Dubey, Ranjit Saxena

Hon'ble Shashi Kant Gupta, J.

Hon'ble Pradeep Kumar Srivastava, J.

As prayed by the learned counsel for the petitioner, list the matter after two weeks showing the name of Sri Ashutosh Dwivedi as learned counsel for the Electricity Department.

Order Date :- 25.3.2019

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Court No. - 34

Case :- WRIT - C No. - 22650 of 2007

Petitioner :- M/S Devi Charan Cold Storage Tirwa

Respondent :- Executive Engineer And Others

Counsel for Petitioner :- Kr. R.C. Singh, Shyam Singh Sengar

Counsel for Respondent :- Ashutosh Dwivedi, Asutosh Dwivedi, Baleshwar Chaturvedi, C.S.C., H.P. Dubey, Ranjit Saxena

Hon'ble Sudhir Agarwal, J.

Hon'ble Rajeev Misra, J.

1. Heard Sri Shyam Singh Sengar, learned counsel for petitioner, learned Standing Counsel for State and Sri Ashutosh Dwivedi, learned counsel for respondent-Electricity Department.
2. Demand of arrears of electricity charges was made by respondents on the ground that certain cheques given by petitioner for depositing electricity dues were dishonoured. Petitioner's representation challenging the same has been rejected by Executive Engineer, Vidhyut Vitran Khand, Dakshinanchal Vidyut Vitran Nigam Limited, Kannauj (hereinafter referred to as "Executive Engineer") by order dated 20.03.2007 and this order has been challenged in present writ petition and a mandamus has also been sought that no demand should be raised with respect to said order.
3. Petitioner-company is disputing the demand raised for payment of electricity dues on the ground that payment has already been made by it. However, it is evident from record that earlier cheques deposited by petitioner-company regarding payment of electricity dues were dishonoured.
4. Be that as it may. The issue raised in this writ petition involves accounting and disputed questions regarding payment of electricity dues and in this regard, petitioner has a statutory alternative remedy before District Consumer Grievance Redressal Forum (hereinafter referred to as "Forum") as per Clause 7.10 of Electricity Supply Code, 2005 (hereinafter referred to as "ESC 2005"). Thereafter, still if petitioner is aggrieved by

non-redressal of its grievances, it may further approach Electricity Ombudsmand (Lokpal) under the same provisions of ES Code, 2005.

5. In view thereof, this writ petition is dismissed on the ground of alternative remedy.

6. Interim order, if any, stands vacated.

Order Date : 08.08.2019

Manish Himwan